OPEN SOCIETY
JUSTICE INITIATIVE

LITIGATION

# Hospital Attacks in Syria

COURT
UN Human Rights Committee

COUNTRY
Russian Federation

STATUS
Active

## Victims of a Russian Air-force Attack on a Syrian Hospital Seek Accountability

A legal filing, brought on behalf of victims and survivors of a Russian air-force attack on a hospital in Syria in 2019, argues before the UN Human Rights Committee that the action and Russia's subsequent failure to investigate represent a breach of Moscow's obligations under the International Covenant on Civil and Political Rights.

## Facts

On 5 May 2019, at approximately 17:30 local time, an aerial munition hit the entrance to Kafr Nabl Surgical Hospital in Idlib province, Syria. Over the next twenty minutes, the hospital complex was struck a further three times.

Two brothers, who were standing near the entrance to the hospital at the time, died as a result of the attack: one brother was killed instantly; his older brother was injured in the attack and died some months later as a result of his injuries. The attack also endangered the lives of the approximately 30 people working in and using the hospital at the time – medical practitioners, patients, support staff, and visitors.

The attack was carried out by the Russian Aerospace Force. The evidence includes observations of Russian aircraft, and audio recordings of communications between a Russian pilot and Russian ground control, authorising the release of aerial munitions and confirming that the aerial munitions had been dropped at the precise times that strikes were captured on video.

## Ope ent

The C fessor of human rights at Middlesex University, are representing the applicants in the co , and Hand in Hand for Aid and Development, the humanitarian organisation runni

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## Arguments

The attack on Kafr Nabl Hospital on 5 May 2019 was a clear violation of International Humanitarian Law. Russia deliberately targeted a known hospital, which was being used exclusively for medical purposes. Russia had been notified of the coordinates of the hospital under the UN Deconfliction Mechanism (a “no hit list” designed to protect humanitarian facilities).

Russia was obliged not to infringe the human rights of the victims: it brought the victims under its jurisdiction when it carried out the attack.

In its General Comment No. 36 on the right to life, the Human Rights Committee confirmed that a state’s obligation under Article 6 ICCPR, read in conjunction with a state’s general duty under Article 2(1) ICCPR, covers “all persons who are within its territory and all persons subject to its jurisdiction, that is, all persons over whose enjoyment of the right to life it exercises power or effective control”. This includes “persons located outside any territory effectively controlled by the State whose right to life is nonetheless affected by its military or other activities in a direct and reasonably foreseeable manner”.

It follows that the attack violated the right to life under the International Covenant on Civil and Political Rights (Article 6). In failing to carry out an adequate investigation into the attack, Russia also violated Article 6 and Article 2(3) – the right to an effective remedy.

## Video Presentation of Key Facts

To support the UNHRC filing, the Justice Initiative submitted an 11 minute video compilation of audio recordings and other evidence showing the role of the Russian air force in the May 5 attack. View the video here:

https://osf.to/KafrNablVideoFull (English version,11.02)

https://osf.to/KafrNablVideoArabic (Arabic version, 11.41)

https://osf.to/KafrNablVideo (Short English version, 3.47)

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# RELATED CASES

LITIGATION

### French Criminal Investigation of Chemical Weapons Attacks In Syria

On March 1, 2021, the Justice Initiative joined Syrian survivors of chemical weapons attacks, the Syrian Center for Media and Freedom of Expression (SCM), and Syrian Archive in seeking a French criminal inv… the city of Douma and on Eastern Ghouta.

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### G… …emical Weapons Attacks in Syria

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The Justice Initiative has joined with Syrian groups in filing the first criminal complaint against Syrian government officials for the 2013 and 2017 chemical weapons attacks in Ghouta and Khan Shaykhun. The complaint was filed before the Office of the German Federal Prosecutor.

LITIGATION

### Swedish Criminal Investigation of Chemical Weapons Attacks In Syria

On April 19, 2021, the Open Society Justice Initiative joined survivors of chemical weapons attacks in Syria, the Syrian Center for Media and Freedom of Expression (SCM), Syrian Archive, and Civil Rights Defenders in filing a criminal complaint with Swedish War Crimes Commission within the Swedish Police Authority.

## RELATED WORK

PRESS RELEASE

### French Magistrates Seek Arrest of Syria's Al-Assad and Associates for Chemical Weapons Attacks

Arrest warrants for Al-Assad, his brother, and two other senior officials have been issued after an extensive investigation into chemical weapons attacks on civilians in Douma and Eastern Ghouta in August 2013 that killed more than 1,000 people.

NOVEMBER 15, 2023

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